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Secure Occupancy: A New Framework for Analysing Security in Rental Housing

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ABSTRACT *Unlike debates about security for owner occupiers which recognise that security is complex and multi-layered, security for renters is often presented as single dimensional and conflated with* de jure *security of tenure, deriving from a property rights perspective. This article proposes a broader concept of 'secure occupancy' to enable a more nuanced understanding of security for tenants. A new framework is developed to enable investigation of the dynamic interactions between legislation/regulation, housing market conditions, public policies and cultural norms around renting, which shape security of occupancy for tenants. The paper illustrates this approach, drawing on a study of the rental systems of nine developed countries, identifying key factors that appear to have a strong bearing on strengthening, and weakening, of security of occupancy for renter households. The article concludes that this approach has the potential to deepen understanding of security for renters and to stimulate new avenues for research.*

KEY WORDS: Housing tenure, comparative housing, housing policy, secure occupancy, security in rental housing, tenancy sustainment

Introduction

From Maslow's (1954) famous hierarchy of needs onwards, there has been recognition that security is important to human well-being and best viewed as multi-layered. In the housing literature, the complex and layered nature of security has been highlighted in work on the meaning of 'home', which identifies the interrelationships between the physical dimensions of housing (such as basic safety and security) and the psycho-social dimensions of home such as privacy, emotional security and identity (Easthope, 2004; Gurney, 1997; Somerville, 1992). The literature on owner occupation also recognises different layers of security including financial security in respect of wealth and income over the life course (Bright & Hopkins, 2011), and the psycho-social dimensions of security, deploying concepts such as ontological security (Saunders, 1990), referring to satisfaction of a deep psychological need for a sense of security and constancy. The

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psycho-social aspects of security associated with owner occupation have been much debated with some empirical research also highlighting financial risks that can undermine psycho-social security (e.g. Nettleton & Burrows, 1998) and other research suggesting that the socio-demographic attributes of owner occupiers, such as wealth position, living in a larger and better quality dwelling, and living in a 'good area', rather than ownership *per se*, may explain apparently high levels of ontological security (e.g. Hiscock *et al.*, 2001). To a large extent, the position of renters on these attributes has been either ignored or inferred as being inferior to that of owner occupiers, reflecting the use of housing tenure as a universal analytical lens, a position which has been the subject of substantial critique more generally (e.g. Barlow & Duncan, 1988; Doling, 1999; Ruonavaara, 1993).

Specific consideration of security for renters is often framed as 'security of tenure', using a property rights perspective, raising questions about whether lack of security refers to renting *per se* or is a reflection of current institutional arrangements around renting (Hulse, 2008). From this perspective, the nature of tenure security depends on a number of factors including the nature of legislation/regulation and policy settings that generate the structure of rental tenures. Consideration of security for renters is somewhat one-dimensional, not engaging with its layered nature that has stimulated the sometimes controversial debates about security and owner occupation. This is of concern since security in housing is thought to be important to many aspects of human well-being, irrespective of housing tenure, including family functioning, childhood development, economic and social participation and physical and mental health (e.g. Evans *et al.*, 2003; Leventhal & Newman, 2010; Smith *et al.*, 2003).

The purpose of this article is to broaden the consideration of security for renters. The first part discusses the concept of 'security of tenure' before examining a distinction between *de jure*, *de facto* and perceptual security of tenure (van Gelder, 2010). The paper then presents a concept of secure occupancy, arguing that this can broaden understanding of security for renters beyond the politico-legal concept of security of tenure to include other types of legislation, market factors, policy settings in a number of domains and cultural norms. Using this concept enables a new framework that can generate a broader research agenda. The second part of the paper draws on research that applied this framework to an analysis of security in rental housing in nine countries (or parts or countries). Whilst the detailed results have been reported elsewhere (Hulse *et al.*, 2011), this article provides selected illustrations of how the factors that shape secure occupancy for renter households operate and interact. The article concludes with an assessment of how this approach could be applied in research that aims to develop a more nuanced understanding of security for households who rent.

Security of Tenure

Security of Tenure and Property Rights

At the heart of the concept of security of tenure is the legal contract between the owner of residential property and the occupier. Tenure in this context is not 'housing tenure' but refers more generally to the terms and conditions under which people hold land and property (Blandy & Goodchild, 1999, p. 33). These terms and conditions derive from property rights which relate to acquisition, use/occupancy and disposal of real property and which have a different history in the Anglophone countries, where they are derived

from (English) common law with its basis in precedent (Stewart, 1994), than for many of the countries in continental Europe, where they are established in codified civil law (de Decker, 2001). Property rights relate to housing tenure in that owner occupiers are considered to have a fuller range of rights, whereas, in rental arrangements, the owner retains acquisition and disposal rights whilst rights in relation to use/occupancy are allocated within a legislative/regulatory framework between the property owner and the tenant. Indeed, in his work on housing tenure, Ruonavaara (1993, p. 12) suggests that the main difference between owning and renting lies in the disposal rights of owners.

When investigated from a legal perspective, it is clear, however, that the terms and conditions of occupancy of rental housing are more complex than property rights under property law or civil codes. In an early volume of *Housing Studies*, Stewart (1994) examined the law's contribution to the construction of power relationships within the housing sector, referring to English law. She made an important distinction between *individual property relations* within the realm of property law and based on assumptions of freedom of contract and equal bargaining power (referring to leases between property owners and occupiers); *individual statutory relationships* deriving from legislation which attempts to adjust power relations between parties to a lease to protect the weaker party; and the *regulatory sphere* which regulates providers of rental housing within a wider set of power relations, such as regulation of the activities of different types of social landlords (Stewart, 1994, pp. 263–265). Blandy & Goodchild (1999, p. 34) suggest a threefold classification based on property rights, housing status created through statutory law and housing tenure which is the product of policy settings. In a number of European countries, new legislation on residential tenancies has been established within national Civil Codes (or parts thereof), sometimes with additional and specific legislation for some types of tenancies (Hulse *et al.*, 2011, p. 105). The situation is further complicated in countries where there is legislation at both national and sub-national levels. This work suggests that, even from a legal perspective, security of tenure is quite complex. As highlighted by Kemeny (1995, p. 27), rental markets are structured as 'the result of cumulative legislation and policy over many decades'. Thus security of tenure is best described as a politico-legal concept, which is historically and culturally contingent and which can be regarded as a continuum rather than a dichotomy.

De Jure, de Facto and Perceptual Security of Tenure

Much of the literature on security of tenure concerns developing countries and there is a lively and robust debate about types and levels of security of tenure in the context of the establishment of legal systems of property titling and exchange that can enable land and housing development (Arnot *et al.*, 2011; World Bank, 1993). As part of this debate, van Gelder (2010) argues for a tripartite distinction between *de jure* security of tenure, *de facto* security and perceptual security. *De jure* security is embedded in property rights, the legal rules that enable owners to acquire, use and dispose of their property and lease arrangements over land/housing, as discussed above. *De facto* security refers to occupation and use of property such that, over time, occupiers may acquire greater security and the risks of eviction become less. Perceptual security refers to security as seen and experienced by occupiers; thus people may think that they may lose their housing/land whether or not this happens or is even threatened, or they may feel secure in their occupation even if they do not have legal rights that are enforceable.

This distinction between types of security of tenure is also useful in considering the rental systems of developed countries. Importantly, it is *de jure* security of tenure that has been a key concept in explanations of the structuring of rental sectors of developed societies. Kemeny's (1995, 2006) much-discussed exposition distinguishes between 'low' and 'high' levels of security of tenure, which along with rent setting and housing quality standards, is seen as the key markers of the construction of rental tenures. There are very limited details as to what constitutes security of tenure in this account. Integrated rental systems, adapted from the German social market model, are said to be characterised by non-profit sectors that exercise influence over the entire rental sector in terms of 'security of tenure, providing norms for tenants' autonomy', moderation of rent levels and through maintaining housing standards (Kemeny, 2006, p. 5). In contrast, in dualist rental markets, dominant for-profit rental arrangements have 'weak or non-existent security of tenure', profit-driven rents and lower quality standards, except for small and highly controlled social rental sectors (Kemeny, 2006, p. 2). The key to the argument is that weak security of rental tenure along with high rents and 'large amounts of slum housing' propels higher rates of owner occupation (Kemeny, 2006, p. 13).

As noted by Hoekstra (2009), this is a theoretical exposition which requires empirical testing. Whilst there has been comparative research into rent setting and regulation (e.g. Haffner *et al.*, 2008), there appears to have been no systematic operationalisation and testing of the assumptions about security of tenure or housing quality. It has also been suggested that privatization processes from early 1990s (i.e. change in the role of governments vis-à-vis markets) have led to shifting power positions and relations within integrated rental systems that may call into question the sharp distinction between these two types of rental market structuring (Lennartz, 2011).

De facto security of tenure refers to the degree of security experienced by tenants. An important consideration is whether tenants can afford to pay the rent, both initially and as their tenancy progresses. It is important to note that regulation of rents is conceptually distinct from the regulation of contract terms between landlords and tenants although clearly related in practice. Thus, as argued by Lind (2001, p. 44), the right of the tenant to extend a contract may be meaningless if the tenant cannot afford the rent because there is no regulation of rents for continuing tenancies. Likewise, if the contract is not able to be extended, there is no benefit to the tenant of regulation of rents of continuing tenants. However, irrespective of the nature and type of rent regulation, a range of other housing-related factors are likely to shape *de facto* security including motivations and behaviours of landlords, rental housing management practices and the rules that attach to living in rental housing (e.g. on occupancy levels, capacity to personalise a dwelling and use of shared areas). Housing market context is important to *de facto* security, for example where tenants overstretch themselves financially in order to have somewhere to live, as suggested by detailed research which indicates that lower income households faced with a shortage of affordable housing commit to rent levels higher than indicated by their incomes in countries as diverse as Norway (Stamsø, 2010) and Australia (Wulff *et al.*, 2011). There is also clearly a range of non-housing market-related reasons why renter households may not experience *de facto* security of tenure, including loss of income or job and fluctuating income due to increasing casualisation of the labour market (Morgan, 2009), as well as significant life events such as family breakdown. Broad structural changes could also be expected to affect *de facto* security for renters, such as higher rates of unemployment in

many European countries, and in the USA, in the aftermath of the Global Financial Crisis of 2007–2008.

Perceptual security refers to the sense of security that occupants have over their housing. van Gelder (2010, p. 451) argues that subjective perception of the probability of losing one's land/housing may differ from the objective likelihood of that risk and that it is the perception of (in)security that could be expected to affect behaviour. This draws attention to the way in which people respond to, and process, information about risk and suggests that an individual's experience of his/her tenure situation is important (van Gelder, 2013). Theoretical explanations of perception, and the links between perception, intentions and behaviour, are found in the social psychology literature but have been little explored in the housing studies literature on renting. One of the most influential has been the theory of planned behaviour (Ajzen, 2005, 2012), building on the reasoned action approach of Ajzen & Fishbein (1980). This identifies three types of factors thought to shape behavioural intentions which in turn correlate closely with behaviour, namely attitude towards the behaviour, subjective norms and perceived behavioural control. Giving consideration to the applicability of those ideas to the subject of this paper suggests that attitudes to renting, and in particular the degree of security associated with renting, may be shaped by many factors including media representations and personal biographies and, once developed, may be slow to change. Subjective norms refer to the extent to which people take into account the views of significant other people, such as family and friends, on renting. Perceived behavioural control refers to the degree of choice or constraint that people feel over their decisions and is 'conceptually equivalent' (Ajzen, 2012) to Bandura's concept of 'self-efficacy', referring to 'people's beliefs about their capabilities to exercise control over their own level of functioning and over events that affect their lives' (Bandura, 1993, p. 118).

Both attitudes and peer pressures can be postulated to be linked to cultural norms about renting, whilst perceived behavioural control is a more individual factor and may be important in explaining why people in apparently similar circumstances may have different levels of perceptual security in relation to renting. The extent to which tenants have perceptual security is thus an empirical question as shown in two studies. Minnery *et al.* (2003, pp. 59–63) found that tenants in the private rental sector in Queensland (Australia) who had low levels of *de jure* security of tenure (a norm of 6 month leases and unregulated rents) expressed multiple meanings of security of tenure including not only lease terms and future rental costs but also choice over how long they could stay in the dwelling; a feeling of control over their tenancy arrangements; and certainty that the dwelling and location was appropriate to them. Pawson & Munro (2010, p. 157) in a study of tenancy sustainment rates in social housing in Scotland (UK) found that notwithstanding a high level of *de jure* security of tenure, tenants left social housing for complex and inter-related reasons. The commonest reasons were the perceived need to escape anti-social behaviour, being allocated a house in an unwanted area, lack of storage, social isolation, dissatisfaction with property condition and debt problems. Research of this type is exploratory but suggests that a range of factors can contribute to perceptual security including perspectives on the type of housing (size, quality, condition), location, rental housing management practices and perceptions of neighbours and neighbourhood. The importance of autonomy and control over one's living circumstances accords with the much more substantial literature on security and owner occupation.

Secure Occupancy

It is apparent from the discussion above that security for renters is layered and cannot be reduced to a simple, largely dichotomous, concept of *de jure* security of tenure derived from property rights. Security of occupation for tenants is shaped by the interaction of legislation/regulation in a variety of domains, government policies, market factors and the everyday practices of various actors, underpinned by cultural norms about rental housing, as well as more individual factors such as perceived behavioural control. This raises questions as to how these different types of security are related. For example, it appears that *de jure* security may not necessarily lead to *de facto* and perceptual security. This is not to suggest that legislation and regulation about lease forms, lengths and terms are not important, indeed van Gelder (2010, p. 453) argues that without legal rights of occupation, *de facto* and perceptual security will always be partial. A fuller understanding of security for renters, however, requires attention to the range of factors which shape *de fac*to and perceptual security as well as *de jure* security.

To address this, a new concept of secure occupancy is proposed to deepen the understanding of security for renters and to develop a broader research agenda. Secure occupancy is defined as the extent to which households who occupy rented dwellings can make a home and stay there, to the extent that they wish to do so, subject to meeting their obligations as a tenant. It is a multi-dimensional concept which involves being able to participate effectively in rental markets; to rent housing with protection of rights as tenants, consumers and citizens; to receive support and assistance from governments if required; and to exercise a degree of control over housing circumstances and make a home. It is important to note that secure occupancy is not a dichotomous concept (strong/weak or high/low), rather it refers to the degree of security of occupation of rented housing that is desired, available and achievable. This recognises that whilst some households rent by choice, and some value flexibility rather than security of occupancy depending on their circumstances (Minnery *et al.*, 2003), the rental sector in many developed countries houses lower income households who have no choice except to rent their housing. Furthermore, some residents may jeopardise their tenancy through factors such as non-payment of rent, damage to the property and/or behaviour that disturbs or threatens the secure occupancy of other residents.

It is also important to note that the concept applies across the rental sector rather than starting with a-priori assumptions about specific rental sub-sectors. Thus rather than starting with assumptions about the nature and type of *de facto* and perceptual security for tenants in sub-sectors defined by institutional arrangements and regulatory regimes, it is important to investigate this empirically, as suggested by comparative research which has indicated, for example, that some of the European countries with strong *de jure* security of tenure in 'mainstream' social housing also have sub-sectors for 'problem tenants' that are less secure (Fitzpatrick & Stephens, 2007) and that vulnerable households live in a variety of rental sub-sectors, including privately owned rental housing (Whitehead & Scanlon, 2007, pp. 21–23).

The four groups of factors that interact to shape secure occupancy are outlined in Table 1. which provides a framework for investigating secure occupancy empirically.

Table 1 expands on the four groups of factors discussed above: legal, policy settings, market factors and cultural norms. Cultural norms are often unspoken; they underpin economic and social relations between different sets of actors and are embedded in

Table 1. Potential contributors to secure occupancy: developing a research agenda

Types of security	Type of factors	Key foci	Examples of potential influences on secure occupancy
De jure security of tenure	Legal	Lease terms	Length of rental contract and termination arrangements
De facto security		Other tenancy terms	Rights and responsibilities of landlords/tenants including rent payments and property condition and repair and payments of utilities
		Tenancy conditions and rental property management	Rules that affect daily living e.g. occupancy limits, modification for disability, decoration, alteration, personalising exclusions, pet ownership, etc.
			Liveability—housing quality and condition; housing repair and safety; thermal performance and noise controls
		Consumer protection	Rents relative to property quality/amenity
			Regulation of rents for new and continuing tenants
			Standard of property management, e.g. repairs
		Fair trading	Avenue for redress for landlords and tenants in case of disputes
	Market	Access affordability	Capacity to obtain properties with affordable rents relative to incomes
			Capacity to meet entry costs
		On-going affordability	Capacity to meet regular rent payments
			Capacity to pay increases in rent during tenancy
			Capacity to cover ongoing payments associated with rental
	Public policy	Rental housing supply and assistance	Impact of public policies affecting the supply of rental housing and property turnover
			Supply of sub-market rental properties; assistance with rental costs; renovation assistance
		Tenancy sustainment	Identification of at risk tenancies; assistance to establish and prevent loss of tenancy
	Cultural	Cultural norms	Actors' views and institutional settings on rental housing
Perceptual security		Psycho-social dimensions of security	Able to feel 'at home': safety, privacy, lack of surveillance, control over one's environment

Source: Adapted from Hulse *et al.* (2011, p. 26).

institutions. For example, if the rental sector is understood primarily as an asset, an investment and a means of storing and increasing wealth for owners/investors, the institutional arrangements for renting will reflect these assumptions, as will the beliefs and practices of actors. The various players in the sector will act to ensure that the housing asset is well maintained, generates a reliable revenue stream and is able to be liquidated readily if market conditions are favourable or the circumstances of owners/investors require this. In contrast, if the rental sector is understood primarily as a place to live and make a home, we would expect to see policies and practices that derive from such beliefs, such as housing allowances that are portable across rental sectors and conditions that enable residents to personalise their dwelling and make a home there. Cultural norms are

likely to reflect both perspectives to some extent, the balance between the two showing the relative power of various interest groups, but the dominant perspective will shape institutional settings including legislation, policies and programmes, and hence security of occupancy. Cultural norms become entrenched in the politics of rental housing markets (Bryant, 2004) and underpin the practices and behaviours that in aggregate constitute markets (Christie *et al.*, 2008) illustrating the inter-relationship between the factors that constitute secure occupancy. A key advantage of comparative research is that it highlights differences in cultural norms around renting.

What Shapes Levels of Secure Occupancy? Overview of Findings from Comparative Research

The rest of the paper illustrates how the framework can open up areas of research with the potential to enhance understanding of the multi-layered nature of security of occupancy for tenants. It draws on detailed comparative research into the rental housing systems of nine developed countries (or jurisdictions within countries): Australia, Austria, Flanders (Belgium), Germany, Ireland, the Netherlands, New Jersey (USA), Ontario (Canada) and Scotland, selected to display diverse legal settings, policy histories and market contexts.

The research method comprised the development of a template, a more detailed version of the framework in Table 1, which was applied by selected experts in those countries, or knowledgeable about the rental systems of those countries, to generate written case studies of rental systems in the nine countries. The case studies were completed in 2010 along with a supplementary review of the academic and 'grey' literature relevant to those countries. The research team conducted a thematic analysis of the research materials rather than the juxtapositional analysis which is more typically deployed in comparative housing research. It should be noted that it was not possible to investigate perceptual security using this method since this would require primary research. However in terms of the theoretical discussion earlier, it could be expected that cultural norms would help shape perceptions.

The purpose here is not to provide a detailed comparison of all the findings since this has been done elsewhere (Hulse *et al.*, 2011). Rather it is to illustrate from observable trends the ways in which interaction between market, legal, policy and cultural factors can influence security of occupancy. The examples included below cover both factors that emerged from the research as having a strong bearing on weakening security of occupancy for households that rent and others that were seen to be contributing to enhanced security of occupancy, as demonstrated through a comparison of contemporary rental systems. However, whether a particular factor supports or reduces the security of occupancy will be contextually contingent. Furthermore, whilst the focus of this article is on the nature of occupancy for residents in the sector, these factors may be construed as having a different impact on owners/investors and thereby on the stability and sustainability of particular rental systems. Therefore, further research is required to assess whether the impacts identified below apply more generally.

To provide context for the discussion that follows, a comparative overview of the structure of the rental sectors in the nine countries (or parts of countries) is provided in Figure 1, and each jurisdiction's prevailing regulatory, legislative, policy and subsidy arrangements applying to renting are given in Table 2.

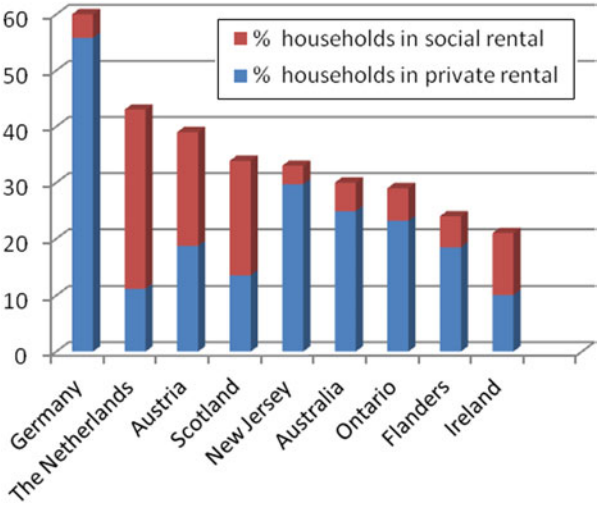


Figure 1. Composition of rental sector by jurisdiction. *Source*: National experts as reported in Hulse *et al* 2011: Table 13. *Notes*: Data are from the case study reports and refer to 2005-2008. Definitions of social rental are based primarily on not-for-profit ownership and management. Data on social housing for Germany and New Jersey are based on subsidised rentals.

Factors Weakening Security of Occupancy

This section elaborates on some key factors that the comparative research suggests reduce the level of security experienced by households renting under particular conditions, complementing other recent comparative research into rental systems using different conceptual schema (e.g. Haffner *et al.*, 2009; Scanlon & Kochan, 2011). The three issues discussed are affordability problems in private rental markets, legal and policy settings that affect living conditions in social housing and short-term tenancies applying as a norm in the private rental sector.

Affordability problems and the nexus between rent subsidies and rent regulation. A characteristic of many of the countries in the research is a chronic shortage of rental housing that is affordable to those on lower incomes. This situation becomes manifest as a security of occupancy issue in two main ways. First, it can reduce the access of lower income households to the private rental market either directly through affordability barriers or indirectly through income-constrained households not being able to bid as effectively as other households for limited vacancies or being excluded by landlords (or their intermediaries) on the basis of being 'higher risk'. Second, high rents and rent escalation arising from market conditions can place pressure on households who are financially overextended to retain their housing, with the extent of this depending on the nature of rent regulation.

The research found that concerns about 'rental affordability' undermining *de facto* security were most evident among some of the jurisdictions that had the smallest social housing sectors and thus relied to a greater extent on the private rental market, as shown in Figure 1. Yet Germany, with the largest private rental market, appeared to have mitigated this problem to a greater extent through negotiation of rents and regulation of rent increases for continuing tenants (Kemp & Kofner, 2010), a strategy still in place

Table 2. Overview of selected characteristics of rental systems influencing security of occupancy by jurisdiction

Country/ jurisdiction	Main forms of ownership	Terms of tenure	Main rent regulations applying to private rental subsector (continuing tenants)[a]	Main forms/ directions of housing assistance policy for rental
Australia	Small scale private investors dominant (limited government/not for profit ownership)	Short-term leases followed by periodic tenancies the norm in private rental. Termination without grounds allowable. Social housing leases shifting from continuous to fixed term (for new tenancies).	2× year maximum, linked to market movements	Modest housing allowances for private renters and limited social housing. Recent boosts to new supply of social and affordable housing. Generous tax provisions for 'mum and dad' rental investors.
Austria	A mix of individual and company owners, including limited profit companies	Fixed term leases (minimum 3 years) for detached dwellings and unlimited leases in multi-unit buildings. Lease termination on specified grounds only.	1× year maximum in line with consumer price index (CPI)	Supply side oriented primarily through public loans and land for social housing. Government credit support for housing bonds finance.
Flanders	Small scale investors dominant (limited not for profit ownership)	Most agreements 3 or 9 years. Sequential 3 year contracts discouraged. Social housing tenancies are continuous after a 2 year trial period.	1× year maximum in line with Health Index	Limited housing allowances to encourage moves from poor quality housing. Limited loans for social housing supply.
Germany	A mix of individual and corporate owners (limited municipal ownership)	Unlimited lease agreements the norm; fixed term applied in special circumstances. Lease termination on limited specified grounds and difficult for landlords to execute.	1× 12–15 month maximum. Adjustments based on similar dwellings or data base of local reference rents.	Mix of housing allowances and subsidies to investors; latter have declined.
Ireland	Roughly equal municipal/not for profit rental sector plus small scale investor sectors	4 year private tenancies the norm, with grounds-based termination except during first 6 months. Continuous tenancies in social housing.	1× year maximum linked to market movements	Housing allowances for private renters. Investment in social housing suspended following global financial crisis.

(*continued*)

Table 2. *Continued*

Country/ jurisdiction	Main forms of ownership	Terms of tenure	Main rent regulations applying to private rental subsector (continuing tenants)[a]	Main forms/ directions of housing assistance policy for rental
New Jersey	Roughly equal ownership by corporate investors and individuals; limited government/ not for profit ownership	Month to month or year to year leases are typical. A tenant has a right to renewal unless a valid action for eviction is taken.	1× year maximum in line with CPI or other index (depending on municipality)	Housing allowances available on rationed basis. Tax credit incentives for investors in affordable housing. Mandated inclusionary zoning for affordable housing.
Ontario	Roughly equal ownership by institutional investors and individuals; limited government/ not for profit ownership	Annual leases followed by periodic tenancies typical in the private market. Continuous tenancies in social housing.	1× year maximum, rate of increase set by provincial government	Limited subsidies for new affordable housing. Limited assistance with shelter costs for renters.
Scotland	Sizeable government/not-for-profit ownership plus growing small scale investor sector	Short-term leases followed by periodic tenancies the norm in private rental. Termination without grounds allowable. Continuous tenancies in social housing.	1× year maximum linked to market movements	Housing allowances across the rental sector. Partial grants for social housing supply.
The Netherlands	Not-for-profits dominate ownership of rental housing. Roughly equal ownership of private rental by institutions and individuals.	Unlimited lease agreements with strict grounds for termination the norm for private and social renting.	1× year maximum, rate of increase set by national government	Housing allowances across the rental sector. Guarantee on borrowings of housing associations. Favourable local planning provisions for affordable housing supply.

Source: Adapted from Hulse *et al.* (2011). Tables 15, 17, 18, 21, 25–27.
[a] Social housing asking rents and rent increases are regulated in all jurisdictions.

notwithstanding that rental housing affordability has become a more pressing issue in large German cities over the last 5 years (e.g. Tieg, 2013). This suggests that ownership *per se* is not necessarily the foundation for security for tenants, provided that there is appropriate regulation of all tenancies and a system of subsidies to improve access for households who might otherwise be excluded from tenancy.

A public policy trend over almost three decades has seen greater emphasis on housing allowances (and its corollary a lesser emphasis on public investment in supply subsidies or direct supply) as a means of enabling lower income households to have access to, and remain in, affordable rental housing. Among the countries studied, housing allowances have played an increasingly important role since the mid-1980s in Australia, Germany, Ireland, the Netherlands, New Jersey and Scotland. More contained systems of housing allowances for renters exist in Belgium (Flanders), Canada (Ontario) and Austria, which is unique among the countries studied in retaining its emphasis on supply side subsidies. However, housing allowance rates do not necessarily increase at the same rate as increases in rents, potentially adding to financial insecurity for renters. The rising cost of housing allowance schemes was an issue in all the jurisdictions and one that has sharpened in the context of fiscal austerity following the global financial crisis 2007–2008, and there are now signs of retrenchment (e.g. in Scotland) that will weaken financial security for tenants.

This suggests that affordability factors have the potential to undermine security of occupancy for lower income households across many countries in future, unless more effective ameliorative policies are put in place. In markets where there is a lack of investment in low-cost rental supply and low vacancy rates, it appears that security of occupancy for those households for whom affordability is a pressing issue may in practice depend as much on social policies, such as the quality of rental assistance, and on regulatory settings affecting rent levels and protection from excessive rent increases, as on *de jure* security.

De jure *security in social housing weakened by policy settings*. Social housing is widely assumed to contribute positively to security of occupancy through offering long-term tenancies (*de jure* security of tenure) and moderated rents. However, statutory and policy settings being applied to social housing are systematically changing its role from that of being an alternative secure option to owner occupation to one offering housing for those in high need on a conditional basis, although the extent to which this is the case varies between the nine countries.

Targeting of social housing to lower income households and those with more complex needs is changing the profile of who lives in the tenure, quite dramatically in some cases. Two main types of detrimental effects on secure occupancy can ensue from this trend. The first is that tenancies where complex needs and disruptive behaviours are present become harder to sustain, especially where support services are undersupplied or are not matched to the diverse circumstances of individual residents. The second is that neighbouring tenants living in close proximity (such as on estates and in apartment blocks) may be adversely affected by noise and other inappropriate disruptive or criminal behaviour such that they stay more because of necessity than preference, give notice and quit or, in severe circumstances, they abandon their tenancy. Where this tendency contributes to higher rates of tenancy turnover and more ‘hard to let’ properties in a social housing locality, stigmatisation and a cycle of neighbourhood instability may ensue (Flint, 2006).

To manage disruptive behaviours, social landlords in many jurisdictions have tried to balance intensive tenancy support and sustainment strategies with additional controls, such as probationary or conditional tenancies (as in Ireland, Scotland and Flanders) or introducing further forms of surveillance, powers of intervention and grounds for eviction (as in parts of Australia, Ireland and Scotland). Six of the case study countries exhibited a

trend to impose additional conditions on social housing tenancies either via amendments to general legislation on tenancy contracts or via the introduction of special legislation. The development of this approach means that social landlords in those jurisdictions have different powers to private landlords, although resident behaviour may be an issue for both.

The new conditions of social housing tenancy go beyond traditional tenancy law by linking grounds for eviction to fraudulent, criminal or anti-social behaviours of tenants that are unrelated to occupancy and in some cases relate to the behaviour of other household members. In several instances (such as Scotland, Ireland and Australia), this has resulted in harsher conditions of tenancy and mechanisms of control than apply in the private rental market, thus altering *de jure* security for those in a defined sub-sector of the rental market. A positive outcome of introducing greater controls can be to promote the living conditions of other social housing tenants by assisting quiet enjoyment for neighbouring tenants and other household members. However, using social housing tenancy law as a means of social control through greater surveillance and additional controls can also add to perceptions of vulnerability and powerlessness for others, potentially undermining *de facto* and perceptual security more widely (for tenants, household members and those considering this tenure).

In countries where a more diversified social housing system has been retained, albeit targeted more at lower income households than previously (e.g. in Austria and the Netherlands), tenancy legislation and tenure-linked strategies have not been used to control anti-social behaviour problems. Germany, with its large private rental sector housing a diverse range of households, has also not taken this approach.

Short-term tenancy norms, tenant selection/access and housing management practices. There is a complex spectrum of practices concerning the extent to which tenants have legal rights to continue their tenancy over an extended period if they choose to do so, especially in privately owned housing. As shown in Table 2, models of tenure security vary broadly from the minimalist situation applying to private tenants in Australia, Scotland and Ontario where the lease terms offered by landlords are typically short (6 or 12 months) and termination by landlords may occur without grounds being established (for Scotland and Australia), through settings where private tenants have the option of entering into medium/longer term tenancies (as in Ireland and Flanders), to the norm of offering all tenants continuous (or renewable) tenancies that are subject to landlord termination only on statutory grounds with strict procedural requirements (in Germany, Austria and the Netherlands).

Under short-term tenancies, tenants have little or no control over being required by their landlord to move once the term of their lease has expired. Whether landlords exercise their rights in this regard will depend on many dynamic factors including housing market conditions and financial returns, the personal and financial circumstances of investors as well as tenancy and property management issues that may promote action (Seelig *et al.*, 2009). While many tenants may not experience moves that are beyond their control, and may obtain *de facto* security over time because of their value to a landlord [as argued by Ball (2010)], the potential for instability, which may heighten a perception of insecurity, is ever present. Having an expired lease and a fear of termination may also have wider impacts on occupancy conditions by undermining the capacity of tenants to negotiate rent levels, repairs and maintenance, or housing modifications for fear of retaliatory action by

landlords, especially where grounds for termination are not required and demand outstrips supply. In addition, tenants with insecure tenure may be less likely to consider it viable to personalise their dwelling and make improvements to their home.

We did not find a consistent relationship between ownership patterns (not-for-profit, private individual, corporate), investment scale (individual or syndicated) or rental market segmentation (private or social sub-sector dominant) that could explain why countries adopt different approaches to setting tenancy terms. It does appear, however, that cultural norms do have a causal role in influencing standards and acceptable practices in this area. Regardless of other factors, Germany, the Netherlands and Austria indicated cultural norms that supported security for tenants whilst the Anglophone countries and Flanders manifested cultural norms that supported security for tenants in social housing but offered landlord flexibility in the private rental system. This is not a static situation, however, and advocacy for policy reform from landlord or tenant perspectives can sway embedded approaches. For example, Ireland and Flanders have attempted in recent years (2004 and 2007, respectively) to transform the historic norm of short-term tenancies in private rental by encouraging medium/longer fixed term tenancies. On the other hand, Australia has introduced short and medium-term tenancies in social rental housing, ostensibly on equity and efficiency grounds (see Fitzpatrick & Pawson, 2013, this volume). In a different approach to changing cultural norms, tenant and community interest groups in Ontario have been at the forefront of a long-term human rights approach to building wider acceptance of tenants' rights to decent, secure and affordable housing and overcoming discriminatory barriers in rental housing. These jurisdictions offer potentially fruitful arenas for further investigation of the impact of such approaches on *de jure*, *de facto* and perceptual security.

Factors with the Potential to Enhance Security of Occupancy

This section identifies three key interactions that have been observed from the case study research (Hulse *et al.*, 2011) to improve, or have the potential to improve, tenants' experience of secure occupancy in developed countries. These concern strong legal protections afforded to tenants combined with practices that support secure occupancy; policy initiatives targeted at improving the establishment and success of tenancies, including financial and non-financial measures; and innovative tenure arrangements that mediate the relationships between tenants and landlords to give residents more autonomy and control.

Legal protection combined with practices to support secure occupancy. Legal conditions that offer tenants the right to occupy their homes, subject only to proven breaches of their lease agreements, and rigorous grounds for termination, provide a strong legal basis for continuous tenancy and thus *de jure* security of tenure forms a primary foundation for secure occupancy. Best practice in this area can be considered as a necessary but not sufficient condition for achieving high levels of *de facto* security. For example, legal rights need to be underpinned by well-resourced and accessible processes for adjudication of tenancy disputes, strong information and educational activities directed at tenants and landlords, and landlord accreditation (e.g. the voluntary scheme introduced in Scotland). Moreover, as discussed above, affordability problems or poor living circumstances can militate against the ability of a tenant to enjoy their legal rights to security.

Among the case study jurisdictions, the Netherlands, Austria and Germany exemplified strong practice in relation to the legal protection of tenants. Elements of best practice evident in those countries included provision for indefinite tenancies or renewable medium term contracts as the norm, transparent and evidenced grounds for landlord termination and sufficiently lengthy notice periods to enable tenants to locate new housing in the event of a successful landlord termination (or provision of a replacement dwelling such as applies in some circumstances in Austria), and provision for alleviation of rent during a period of renovation (e.g. in the Netherlands). Nevertheless, it is important to note that practices have not always been conducive to extending secure occupancy to all groups. For example, non-citizens in Austria were excluded from access to social housing until 2006.

Assessing risk in tenant support and tenancy sustainment programmes across the rental sector. Legal protections for tenants notwithstanding, vulnerable households are perennially at risk of losing their housing. In response, a strong trend in the development of housing policy in many countries has been the introduction of tenancy support programmes that aim to help vulnerable tenants to establish and/or sustain a tenancy, associated in part with the trend to 'de-institutionalisation' of accommodation for people with high support needs over the last three decades. While many tenancy support programmes of this kind began in social housing where complex tenancies are concentrating, they are progressively being directed to private tenants also. In many places, they have been advanced as one part of a broader strategy to address homelessness using preventative measures and early intervention.

Programmes of this kind are increasingly being designed as an integrated package of financial and non-financial measures aimed at resolving a household's immediate housing problem and assisting them to develop a plan for preventing future housing insecurity. Examples of good practice from Ontario, Scotland, Austria and New South Wales (Australia) were highlighted in the detailed research, on which this article is based. While well targeted to the needs of particular tenants, these schemes do not address underlying affordability problems and thus, where other measures such as enhanced rent assistance and a sufficient supply of low-cost rental are lacking, they will have only limited potential to improve rental stability overall.

Mediating tenancy conditions to provide greater control for residents. Ownership and management of rental housing can be organised in different ways that have the potential to alter the degree of control that a resident can achieve over their housing. Across the case studies, there was a trend towards promoting innovative arrangements for the ownership and management of rental housing as a means of creating the conditions for greater resident control and responsibility, among other aims. Models with potential to offer favourable conditions for security of occupancy include forms of collective ownership, shared equity and shared ownership, and head leasing.

There were examples in most of the countries of forms of collective ownership, such as housing cooperatives and community land trusts, where residents own equity on a shared or individual basis in a group structure that lessens the direct role of a non-resident investor and thereby changes the potential for conflict between housing and property rights. Variants of these models were of most significance in Germany, Ontario (Canada) and New Jersey (USA). For example, in Germany, tenant cooperatives are increasingly being regarded as a 'third pillar' of the housing system with a specific potential to improve

neighbourhood cohesion and the position of vulnerable households by giving them a stake in their housing. Community Land Trusts, as developed in the USA, operate to support secure occupancy on a number of levels, including improving and preserving housing affordability, stewarding residents on a continuing basis and offering property maintenance services.

Shared equity and shared ownership schemes blur the distinction between owning and renting and are classified differently in different countries. In general, these schemes offer individual residents greater day-to-day control of their housing, such as maintenance responsibilities, in return for making an equity contribution. Scotland, the USA and the Netherlands had the best developed examples of such schemes. However, the recent global credit crunch has halted their growth.

Head leasing schemes operate under an intermediary that has the power to channel tenancy allocations on a non-market basis (similar to social housing) to needy households and to offer a range of financial and non-financial supports to establish and sustain tenancies. For example, Flanders has established specialised Social Rental Agencies to lease and sublet properties to vulnerable tenants with property owners receiving incentives, such as renovation subsidies and guaranteed income, for participating. Similar approaches have also been used in Ireland and Australia at a small scale.

There is also a growing group of schemes that align private investment in rental housing with the provision of affordable and secure housing. Among our selection of countries, Germany has long enabled secure occupancy for lower income households through regulatory conditions applying to private investors in return for receipt of public subsidies. Other well-established schemes include the Low Income Housing Tax Credit in the USA, which has spawned a sector of specialised providers of secure forms of affordable housing that are partly funded by private corporations that purchase tax credits in return for their equity share; and the limited profit rental sector in Austria where registered providers who utilise dedicated bond finance in conjunction with government funding and/or public land grants offer cost-capped forms of secure rental housing. There is a more recent scheme in Australia (the National Rental Affordability Scheme) which is loosely based on housing tax credits in the USA. The crucial factor that enables these hybrid models to improve security of occupancy is that investors can realise their core economic benefits (yield, liquidity) without the need to disrupt a (compliant) tenancy, although the period of time for which this applies may vary (in our study, from a low of 10 years in Australia, through 15 years or more in the USA and Germany, to 'in perpetuity' in Austria).

Conclusion

The importance of security in respect of housing has been well recognised in research into the meaning of home, reinforcing a broader body of literature which indicates that security is a layered concept with physical, financial and psycho-social dimensions and which is important to many aspects of human well-being. In the housing studies literature, security is viewed primarily through the lens of tenure. Security for owner occupiers is viewed as multi-layered, although there is contestation about the extent to which these layers reflect owning *per se* or some combination of the characteristics of owner households and the housing they live in. Security for renters is largely explained through the single dimension of security of tenure, deriving from a property rights perspective and referring to legal agreements between landlords and tenants. Legal research on security of tenure has

indicated a need to explore the broader legislative context and the regulatory regime that constructs different types of tenancies.

The article has argued that although *de jure* security of tenure from a property rights perspective is clearly important, this is too narrow a focus to understand to what extent tenants experience security, and feel secure, in their housing. To this end, a concept of secure occupancy was developed with the purpose of broadening debates about, and research into, security for tenants. A new framework based on this concept enables investigation of the interactions between a variety of legal, market, policy and cultural factors that, it is argued, shape aspects of security—*de jure*, *de facto* and perceptual—for tenants. The framework was applied in comparative research that investigated in depth the rental housing systems of nine developed countries. Drawing on this research, a number of examples of how interaction between particular factors occurs in such a way as to affect security of occupancy for tenants have been provided as illustration.

It is important to note what the concept of secure occupancy, and the framework for its investigation, can and cannot deliver. It is not an explanatory theory, such as the Kemeny thesis on integrated and dual rental market structuring. It does not assume a priori that one set of factors is more important than another but enables investigation of how a diverse range of factors and the interactions between them shape secure occupancy. Although the approach does not in itself provide causally based explanations, it can through empirical investigation provide a means of developing such explanations from different theoretical perspectives.

The framework for investigating secure occupancy can best be regarded as a template to generate a broader understanding of security for tenants and to highlight fruitful areas for both national and comparative research. To give some examples: to what extent does *de jure* security of tenure result in *de facto* security for tenants and what factors limit its effectiveness? What level of perceptual security do tenants have and to what extent does this relate to market factors, cultural norms or individual experiences and perceptions of renting? What level of security makes a difference to the well-being of tenants, including the extent to which this varies by factors such as stage in life cycle, presence of children or some other factor such as having a disability?

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